CHAPTER 82 Election Laws

Representation of The People Act, 1950

Articles 81 and 170 of the Constitution of India lay down the maximum number of seats in Parliament and in Legislative Assemblies of States and also certain principles to be followed in allocating seats in the House of People among the States and in the State Legislative Assemblies, but have left the actual allocation of such seats to be provided by the law.

Similarly, Article 171 of the Constitution of India lays down the maximum and minimum number of seats in the Legislative Council of a State, and also specify the various methods in which the seats shall be filled, but the actual number of seats to be filled by each such method has been left to be provided by law.

Therefore, the Representation of the People Act, 1950, was enacted to provide for the allocation of seats in the House of the People and in the Legislative Assemblies and Legislative Councils of States.

The Act also sought to confer on the President the powers to delimit, after consultation with the Election Commission, the various constituencies for the purpose of elections to fill seats in the House of the People and in the Legislative Assemblies and Legislative Councils of States.

The Act further provided for the registration of electors for Parliamentary Constituencies and for the Assembly and Council Constituencies, and the qualifications and disqualifications for such registration.

The Act also makes the following other provisions relating to the elections:

1. Election officers like chief electoral officers, district election officers, electoral registration officers and so on.
2. Manner of filling seats in the Council of States to be filled by representatives of union territories.
3. Local authorities for purposes of elections to the State Legislative Councils.
4. Barring the jurisdiction of civil courts.

REPRESENTATION OF THE PEOPLE ACT, 1951

The Representation of the People Act, 1950 did not contain all the provisions relating to elections but merely provided for the allocation of seats in and the delimitation of constituencies for the purpose of elections to the House of People and Legislatures of States, the qualifications of voter at such election and the preparations of electoral rolls.



The provisions for the actual conduct of elections to the Houses of Parliament and to the House or Houses of the Legislature of each State, the qualifications and disqualifications for the membership of